

see generally *Martinez v. Rite Aid Corp.* (2021) 63 Cal.App.5th 958 [award of damages for emotional distress].)

Overall, considering the low likelihood that Plaintiff will prevail at trial based on the absence of qualified, admissible evidence; the absence of immediate and ongoing harm to Plaintiff and the potential Plaintiff may be compensated by monetary damages in comparison to the potential harm to Defendant, the balance of harms favors LVT and weighs against issuance of a preliminary injunction.

Because the court finds that Plaintiff has failed to meet his burden to establish an entitlement to a preliminary injunction, the court does not reach the balance of the argument as to whether the relief requested can be nationwide or is now moot because the blue lights associated to the security system are no longer used at GOLDEN HILLS.

Based on the above, Plaintiff's motion for a preliminary injunction is DENIED.

TD BANK, N.A. v. ROYCE S. GOREE
Case No. CU25-08305

Plaintiff's Motion to Have Admissions Deemed Admitted and Request for Sanctions

TENTATIVE RULING:

The motion of TD BANK N.A. to deem matters admitted is DENIED WITHOUT PREJUDICE.

Plaintiff's notice of motion gives erroneous information regarding the time and date of hearing. Notably, the motion advises Defendant to check for a tentative ruling on "6-24-26." Further, the proof of service does not appear to have Defendant's correct mailing address as it fails to identify the proper suite number. Defendant's original answer did not have a suite number, but his amended answer does. This error is ascribed to Defendant and not to Plaintiff, but should be ruled out through meet and confer as a basis for the alleged failure of Defendant to respond before a future motion is filed.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002